CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FIRST SECTION

DECISION

AS TO THE ADMISSIBILITY OF

Application no. 61352/00
by Mehmedalija OMEROVIĆ
against Croatia

The European Court of Human Rights (First Section), sitting on 6 February 2003 as a Chamber composed of

Mr C.L. ROZAKIS, *President*,
Mr G. BONELLO,
Mr P. LORENZEN,
Mrs N. VAJIĆ,
Mrs S. BOTOUCHAROVA,
Mr V. ZAGREBELSKY,
Mrs E. STEINER, *judges*

and Mr S. NIELSEN, *Deputy Section Registrar*,

Having regard to the above application lodged on 13 March 2000,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicant,

Having deliberated, decides as follows:

THE FACTS

The applicant, Mr Mehmedalija Omerović, is a Croatian citizen who was born in 1945 and lives in Gračanica, Bosnia and Herzegovina. The respondent Government are represented by their Agent, Ms Lidija Lukina-Karajković.

A. The circumstances of the case

The facts of the case, as submitted by the parties, may be summarised as follows.

On 2 December 1987 the applicant brought a civil action for damages with the Podravska Slatina Municipal Court (*Općinski sud u Podravskoj Slatini*), against the Podravska Slatina Municipality, A. K. and the insurance company C.

On 14 December 1987 the applicant's son entered the proceedings as the second plaintiff.

Before the period to be examined by the Court (the Convention entered into force in respect of Croatia on 5 November 1997) the Supreme Court (*Vrhovni sud Republike Hrvatske*) transferred the case to the Virovitica Municipal Court (*Općinski sud u Virovitici*), at the applicant's request. The first instance court adjourned two hearings due to the applicant's absence and held one hearing. On several occasions the applicant asked the court to stay the proceedings because the criminal proceedings against I.S., relevant for the case in question, were still pending.

On 23 April 1998 the first instance court asked the Donji Miholjac Municipal Court (*Općinski sud u Donjem Miholjcu*) about the state of the criminal proceedings against I.S. On 15 May 1998 the Donji Miholjac Municipal Court informed the Virovitica Municipal Court that the proceedings in question had been terminated because the statutory limitation had expired.

On 1 June 1998 the Virovitica Municipal Court requested the criminal case file against I.S. from the Donji Miholjac Municipal Court. On 4 June 1998 the case file was submitted.

On 3 and 17 February 1999 the Virovitica Municipal Court asked two different Public Prosecutor's Offices for information about the criminal case file against I.S.

On 12 March 1999 the Slatina Municipality Public Prosecutor's Office (*Općinsko državno odvjetništvo u Slatini*) informed the court that all proceedings against I.S. had been terminated due to the expiration of the statutory limitation.

At the next hearing before the Virovitica Municipal Court on 15 April 1999 the court stayed the proceedings (*mirovanje postupka*) because the applicant did not appear.

On 28 April the applicant and his son asked the court to be exempted from the payment of the costs of the proceedings.

On 29 April 1999 the applicant's son filed an appeal against the decision to stay the proceedings.

On 12 May 1999 the Virovitica Municipal Court held a hearing and exempted the applicant and his son from paying the costs of the proceedings. The case file was forwarded to the appellate court upon the appeal of 28 April 1999.

On 3 June 1999 the appellate court rejected the appeal as being lodged by an unauthorised person.

On 26 July 1999 the applicant asked the first instance court to proceed with his case.

On 28 January 2000 the court asked the applicant to clarify his claim and submit relevant medical and other documentation.

On 20 March 2000 the applicant filed additional submissions.

On 24 March 2000 the court dismissed the applicant's claim as incomprehensible and because the applicant had failed to submit the relevant documents.

On 11 and 15 May 2000 the applicant and his son respectively appealed against the above decision.

On 30 November 2000 the Bjelovar County Court (*Županijski sud u Bjelovaru*) rejected both appeals.

Both the applicant and his son filed a request for revision with the Supreme Court on 2 and 11 January 2001 respectively.

On 21 November 2001 the Supreme Court granted the request and quashed the first and appellate decisions and remitted the case for a re-trial to the Virovitica Municipal Court.

It appears that the proceedings are presently pending before the court of first instance.

B. Relevant domestic law

The relevant parts of Section 63 of the Constitutional Act on the Constitutional Court (entered into force on 15 March 2002, published in the Official Gazette no. 49 of 3 May 2002 - hereinafter "the 2002 Constitutional Act on the Constitutional Court" - *Ustavni zakon o Ustavnom sudu Republike Hrvatske iz 2002*) read as follows:

> (1) The Constitutional Court shall examine a constitutional complaint even before all legal remedies have been exhausted in cases when a competent court has not decided within a reasonable time a claim concerning the applicant's rights and obligations or a criminal charge against him ...
>
> (2) If the constitutional complaint ... under paragraph 1 of this Section is accepted, the Constitutional Court shall determine a time-limit within which a competent court shall decide the case on the merits...

(3) In a decision under paragraph 2 of this Article, the Constitutional Court shall fix appropriate compensation for the applicant in respect of the violation found concerning his constitutional rights ... The compensation shall be paid from the State budget within a term of three months from the date when the party lodged a request for its payment.

COMPLAINTS

1. The applicant invokes Articles 1-3, 5-12, 14 and 17 of the Convention, Articles 1, 2 and 3 of Protocol No. 1, Articles 2 and 3 of Protocol No. 4, Article 1 of Protocol No. 6 and Articles 2 and 3 of Protocol No. 7.

2. The applicant complains under Article 6 § 1 of the Convention about the length of the proceedings and under Article 13 of the Convention that he has no effective remedy in that resepct.

THE LAW

1. The applicant invokes Articles 1-3, 5-12, 14 and 17 of the Convention, Articles 1, 2 and 3 of Protocol No. 1, Articles 2 and 3 of Protocol No. 4, Article 1 of Protocol No. 6 and Articles 2 and 3 of Protocol No. 7, without raising any specific claim.

The Court notes that this part of the application is unsubstantiated in any respect and does not disclose any appearance of a violation of the Convention and/or its Protocols.

It follows that this part of the application is manifestly ill-founded and must be rejected in accordance with Article 35 §§ 3 and 4 of the Convention.

2. The applicant complains about the excessive length of the proceedings under Article 6 § 1 of the Convention, which, in so far as relevant, reads as follows:

"In the determination of his civil rights and obligations ..., everyone is entitled to a ... hearing within a reasonable time by [a] ... tribunal..."

He also complains that he has no effective remedy in respect of the length of the proceedings and relies on Article 13 of the Convention, which reads as follows:

"Everyone whose rights and freedoms as set forth in [the] Convention are violated shall have an effective remedy before a national authority notwithstanding that the violation has been committed by persons acting in an official capacity."

The Government firstly submit that the applicant failed to exhaust domestic remedies because he has not filed a constitutional complaint pursuant to the newly introduced Section 63 of the Constitutional Act on the

Constitutional Court. They argue that such a complaint enables a party to seek the constitutional protection in respect of the length of proceedings and empowers the Constitutional Court to award just satisfaction and to set a time limit for the competent authority to decide the case on the merits.

In the alternative the Government invite the Court to reject the application as manifestly ill-founded.

The applicant submits that his claim was clear and simple and that the case does not involve any legal or factual complexity. He argues that the domestic authorities prevented him from having his claim decided within a reasonable time on purpose.

The Court has first examined whether the applicant has complied with the rule of exhaustion of domestic remedies as required under Article 35 § 1 of the Convention. Recalling its decisions in the Slaviček and Nogolica cases where it found that there exists an effective remedy in respect of the length of proceedings in Croatia, the Court sees no reason to depart in the present case from its view expressed in the above-mentioned cases (see *Slaviček v. Croatia* (dec.), no. 20862/02, 4 July 2002, ECHR - 2002... and *Nogolica v. Croatia* (dec.), no. 77784/01, 5 September 2002, ECHR - 2002...).

It follows that this complaint must be rejected under Article 35 §§ 1 et 4 of the Convention for non-exhaustion of domestic remedies.

As to the complaint under Article 13 of the Convention, the Government argue that Section 63 of the Constitutional Act on the Constitutional Court represents a remedy in respect of the length of proceedings.

This is contested by the applicant.

As explained above, the Court finds that the newly introduced Section 63 of the 2002 Constitutional Act on the Constitutional Court provides the applicant with an effective remedy in respect of the length of the proceedings.

It follows that this complaint is manifestly ill-founded and must be rejected in accordance with Article 35 §§ 3 and 4 of the Convention.

For these reasons, the Court unanimously

Declares the application inadmissible.

Søren NIELSEN
Deputy Registrar

Christos ROZAKIS
President